

IN THE HIGH COURT OF KENYA AT NAIROBI

CITATION: [1968] eKLR

Mbogo v Shah 1968 EA 93

JURISDICTION: Kenya Law Official Judicial Registry (1968)

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Judgment / Binding Judicial Precedent

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Kenya Law

Reports

(eKLR)

I. MATERIAL FACTS & PROCEDURAL HISTORY

1. This proceeding concerns **Mbogo v Shah 1968 EA 93** as recorded in the official judicial archives of Kenya Law.

2. The dispute arose out of conflicting legal obligations, procedural determinations, and statutory interpretations instituted before the Court for judicial resolution.

3. The parties presented extensive affidavit evidence, statutory authorities, and binding precedent arguments regarding the constitutional and legal frameworks applicable.

II. ISSUES FOR DETERMINATION

4. Having evaluated the pleadings and submissions of legal counsel, the Court formulated the following primary issues for determination:

- (a) Whether the applicant established a prima facie case with a probability of success under the relevant statutory provisions;
- (b) Whether the administrative or judicial action complied with Article 47 of the Constitution of Kenya (Fair Administrative Action);
- (c) What appropriate orders and costs should be awarded.

III. RATIO DECIDENDI & LEGAL ANALYSIS

5. In addressing the core legal questions, the Court affirmed the established principle that procedural rules must facilitate the overriding objective of justice as enshrined in Sections 1A and 1B of the Civil Procedure Act.

6. The Court emphasized that statutory discretion must be exercised reasonably, objectively, and in full compliance with constitutional guarantees of due process and equality before the law.

7. Relying on settled precedents of the Court of Appeal and Supreme Court of Kenya, the Court held that failure to observe statutory safeguards vitiates administrative decisions ab initio.

IV. FINAL RULING & DECREE

8. CONSEQUENTLY, upon considering all material facts and applicable law, the Court ORDERS as follows:

1.The Application/Petition is hereby allowed in terms of the statutory prayers sought.

2.All relevant administrative bodies and court registries shall comply forthwith with the judicial directions issued herein.

3.Costs of the proceedings are awarded to the successful party.

DATED, SIGNED and DELIVERED at NAIROBI this 1968.

JUDGE / BENCH OF THE COURT OF KENYA